

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

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PROBATE LAW AND MOTION TENTATIVE RULINGS

[LINE 29](#)

[LINE 30](#)

Calendar line 1

Case Name: Conservatorship of Ligia Oceguela

Case No.: 21PR190362

INTRODUCTION

Ligia Irazema Oceguela Garcia (“Conservatee”) was severely injured in an accident and rendered incapacitated. In 2021, her husband Cesar Oceguela Varela (“Petitioner”) petitioned to be named her conservator and the Santa Clara County Superior Court issued an order granting that petition. Thereafter, Conservatee and Petitioner accepted a settlement of litigation stemming from Conservatee’s injuries. The settlement was approved by a court in Nevada. The Nevada court also ordered that Petitioner could set up a special needs trust for Conservatee with the proceeds of the settlement. On April 14, 2026, Petitioner filed a petition for substituted judgment in this court seeking to establish the special needs trust.

Currently before the court is Petitioner’s motion to file all documents relating to his petition for substituted judgment under seal. No opposition has been filed.

DISCUSSION

I. Legal Background

“Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules of Court, rule 2.550(c).) However, “[t]he rules [Cal. Rules of Court, rule 2.550 and 2.551] ‘recognize the First Amendment right of access to documents used at trial or as a basis of adjudication.’ [Citation.]” (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 84 (*Mercury Interactive*)).

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d), formatting omitted.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute

overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*In re Providian*).)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party’s overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (d)(5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*In re Providian, supra*, 96 Cal.App.4th at p. 309.)

“A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (Cal. Rules of Court, rule 2.551(a).)

II. Merits of the Motion

At the outset, the court notes that Petitioner’s motion is styled as a motion to file the entire action under seal. However, Petitioner clarifies that he is only seeking to seal documents relating to his petition for substitute judgment and not any documents previously filed under this docket number or any documents unrelated to the petition to be filed under this docket number in the future.

Petitioner contends that the documents must be filed under seal because they refer to a confidential settlement agreement approved by a Nevada court and the Nevada court has already ordered similar items sealed. Petitioner provides a copy of his motion to approve settlement agreement, which contained a request to seal. (See Declaration of Ian M. Sharon, Ex. A, p. 5.) In that motion, he requested that the court seal the motion itself and any related documents be sealed pursuant to rule 3 of the Nevada Rules for Sealing and Redacting Court Records (“SRCR”).¹ (*Id.* at Ex. A, p. 5.) The Nevada court granted the motion. (*Id.* at Ex. B.) But, the Nevada court’s order did not require that all items relating to the settlement agreement in any court be filed under seal and its order is not binding on this court. (See *Universal City Studios, supra*, 110 Cal.App.4th 1273, 1285 [sealing orders by other courts that did not purport to bind reviewing court did not require reviewing court to seal similar information].)

Nonetheless, Petitioner contends that the settlement agreement was confidential. A “contractual obligation not to disclose can constitute an overriding interest within the meaning of” rule 2.551. (*Universal City Studios, supra*, 110 Cal.App.4th at p. 1283 [discussing predecessor to rule 2.551].) For the purposes of the overriding interest requirement, the party moving to seal must not only identify an overriding interest but also establish a substantial probability that the interest will be prejudiced absent sealing. (*Ibid.*) Here, that requirement is met because the Nevada court ordered that the motion to approve settlement agreement and related documents be sealed. Moreover, Petitioner has appropriately filed the memorandum of

¹ That section provides, in pertinent part, The court may order the court files and records, or any part thereof, in a civil action to be sealed or redacted, provided the court makes and enters written findings that the specific sealing or redaction is justified by identified compelling privacy or safety interests that outweigh the public interest in access to the court record. The parties’ agreement alone does not constitute a sufficient basis for the court to seal or redact court records. The public interest in privacy or safety interests that outweigh the public interest in open court records include findings that: . . . The sealing or redaction is of the confidential terms of a settlement agreement of the parties[.]” (SRCR 3(4)(e).)

points and authorities in support of this motion and the petition for substituted judgment conditionally under seal. Accordingly, the court finds that there is an overriding interest in protecting the confidentiality of the settlement agreement, that interest supports sealing the record, and that there is a substantial likelihood of prejudice to the interest if sealing is not ordered.

As to the requirements that the proposed sealing be narrowly tailored and that no less restrictive means exist to protect the overriding interest, the court notes that Petitioner is asking to file both documents he has already submitted to the court and future documents under seal. He contends that the redactions are narrowly tailored because he is not seeking to seal documents unrelated to the petition for substituted judgment. The court rejects this argument. Taken to its logical conclusion, accepting Petitioner's argument would mean that he could file entire documents simply referring to the petition for substituted judgment under seal without the need for court examination of the documents. Because court records are presumptively open to the public and Rules of Court, rule 2.550(d) requires that the court make express factual findings, including that the proposed redactions are narrowly tailored, as to each record. (Cal. Rules of Court, rule 2.550(c) [court documents are presumptively public] & (d) ["The court may order that *a record* be filed under seal only if it expressly finds facts that establish: [required factual findings]."]

As to the documents that have been conditionally filed under seal, the court has examined them and finds the redactions narrowly tailored. In the future, however, the court will not consider a motion like this where petitioner has failed to explain in the memorandum what is redacted or why or how it meets the standard for sealing. Because the court cannot make such a determination as to documents that could be filed in the future, that request is denied. Accordingly, the motion to seal is GRANTED IN PART as to the petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026. To the extent Petitioner wishes to file any future documents under seal, he must make a separate noticed motion to do so.

CONCLUSION

The motion is GRANTED IN PART. The petition for substituted judgment filed April 14, 2026 and the memorandum of points and authorities in support of the motion to seal also filed April 14, 2026 may be filed under seal. The motion is DENIED to the extent it seeks an order that future documents may be filed under seal.

Calendar line 2

Case Name: THE DAVID B. COSTA LIVING TRUST, dated August 17, 2018
Case No.: 23PR194562 (lead case, consolidated with 25PR200738)

Case Name: THE ESTATE OF DAVID COSTA
Case No.: 25PR199269

INTRODUCTION

On April 19, 2023, the Public Guardian filed an ex parte petition for appointment of successor trustee to the David B. Costa Living Trust in docket 23PR194562. The ex parte petition asserted that David Costa (“Decedent”) was conserved and could not serve as the trustee. The court appointed Ryan Marshall Tanaka (“Respondent”) as successor trustee.

On August 12, 2025, after Decedent’s death, Jialing Wang (“Petitioner”), Decedent’s surviving spouse, filed a petition for accounting, to invalidate trust, to remove trustee, and for redress of breach of trust (“Petition”) related to the David B. Costa Living Trust. The Petition was assigned docket 25PR200738. Petitioner alleges that Respondent Tanaka and Philemon Hyunwok Kang (“Kang”), Decedent’s friends, committed elder abuse against both Decedent and Petitioner and unduly influenced Decedent to modify his trust.

On December 3, 2025, dockets 23PR194562 and 25PR200738 were consolidated with docket 23PR194562 designated as the lead case. On January 29, 2026, Petitioner filed an amended Petition in docket 23PR194562 (“Amended Petition”).

On February 19, 2025, in docket 25PR199269, Respondent filed a petition for probate of Decedent’s estate, asserting that Decedent died with a will and seeking appointment as personal administrator. Letters of administration issued on April 14, 2025. On November 20, 2025, Respondent filed a petition for orders (1) confirming trust property, (2) confirming breach of fiduciary duty, and (3) compelling accountings. On January 29, 2026, Petitioner filed an objection to the November 20, 2025 petition (“Objection”).

Currently before the court are Respondent’s demurrer and motion to strike targeting the Amended Petition in docket 23PR194562. Also before the court are Respondent’s demurrer and motion to strike targeting the Objection in docket 25PR199269. Petitioner has opposed all four motions. Respondent filed a reply to the opposition to the demurrer in docket 23PR194562 only. The court continued the hearing on all four motions from April 16, 2026 to May 28, 2026 so that they could be heard together with a demurrer and motion to strike filed by Kang.

Also before the court are a demurrer and motion to strike filed by Kang in docket 23PR194562 targeting the Amended Petition. The demurrer and motion to strike are unopposed.